

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
SURAJU YAHUZA,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD OFFICER TODD JACOBY and
NYPD OFFICER MAX GONZALEZ,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 19, 2018

SIVIN & MILLER, LLP

By 

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
SURAJU YAHUZA,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER TODD JACOBY and
NYPD OFFICER MAX GONZALEZ,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Bronx, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the date when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant NYPD Officer Todd Jacoby (hereinafter "Jacoby") was and an officer employed by the NYPD.

6. That at all times herein mentioned, Jacoby was an officer employed by the NYPD's Paid Detail Unit (hereinafter "PDU").

7. That at all times herein mentioned, Jacoby was acting within the course and scope of his employment with the NYPD.

8. That at all times herein mentioned, Jacoby was acting within the course and scope of his employment with the NYPD's PDU.

9. That at all times herein mentioned, Jacoby was acting under color of state law.

10. That at all times herein mentioned, defendant NYPD Officer Max Gonzalez (hereinafter "Gonzalez") was an officer employed by the NYPD.

11. That at all times herein mentioned, Gonzalez was an officer employed by the NYPD's PDU.

12. That at all times herein mentioned, Gonzalez was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, Gonzalez was acting within the course and scope of his employment with the NYPD's PDU.

14. That at all times herein mentioned, Gonzalez was acting under color of state law.

THE FACTS

16. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

17. That on or about November 30, 2016, inside a BJ's Wholesale Club, located at or about 610 Exterior Street, Bronx, NY, the City of New York, by and through its agents, servants and/or employees, including officers with the NYPD's Paid Detail Unit, including Jacoby and Gonzalez, without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense or violation, and without otherwise being justified, forcibly stopped, detained, and seized plaintiff and otherwise used force against plaintiff, including but not limited to discharging chemical spray at plaintiff, forcibly throwing plaintiff to the ground, and forcibly handcuffing plaintiff.

18. That after forcibly stopping, detaining, and seizing plaintiff, defendants arrested and imprisoned plaintiff, again without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense or violation, and without otherwise being justified.

19. That after arresting plaintiff defendants continued to imprison plaintiff against his will at various locations, including but not limited to a hospital and Central Booking.

20. That on or about December 1, 2016, the City of New York, by and through its agents, servants and/or employees, including officers with the NYPD, including Jacoby and Gonzalez, initiated and/or caused to be initiated against plaintiff a prosecution, charging plaintiff with crimes of which he was innocent and of which the officers knew plaintiff to be innocent.

21. That the officers did not have probable cause to believe that plaintiff was guilty of the crimes with which he was charged.

22. That in support of the criminal prosecution, Jacoby executed an accusatory instrument in which he made accusations against plaintiff that he knew were false, including that he was told by Gonzalez that plaintiff refused to present a receipt of purchase to BJ's employees, that plaintiff pushed Gonzalez in his chest causing Gonzalez to fall to the ground, and that plaintiff flailed his arms and twisted his body and refused to be handcuffed.

23. That in further support of the criminal prosecution, Jacoby and Gonzalez knowingly made false statements to fellow officers and to the Office of the District Attorney and/or knowingly made false statements that they knew would be conveyed to the District Attorney, including that plaintiff refused to present a receipt of purchase to BJ's employees, that plaintiff pushed Gonzalez in his chest causing Gonzalez to fall to the ground, and that plaintiff flailed his arms and twisted his body and refused to be handcuffed.

24. That the aforementioned false statements and fabrications by Jacoby and Gonzalez constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

25. That as a result of this prosecution, plaintiff was required to make multiple court appearances and was otherwise restricted in his liberty and travel.

26. That Jacoby, Gonzalez, and the other involved NYPD officers each had reasonable opportunities to intervene to prevent and/or stop the illegal and unconstitutional acts by their fellow officers, and each failed and refused to intervene to prevent and/or stop those illegal and unconstitutional acts.

27. That the aforesaid actions by Jacoby, Gonzalez, and the other officers were intentional and malicious in nature.

28. That as a result of the foregoing, plaintiff suffered and continues to suffer

physical, emotional, and psychological injuries, loss of liberty, embarrassment, and humiliation, damage to reputation, hospital and medical expenses, lost earnings, and other economic loss, and has been otherwise damaged.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of defendants constitute an assault and battery of plaintiff, for which Jacoby and Gonzalez are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment Under NY State Law)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of defendants constitute a false arrest and false imprisonment of plaintiff, for which Jacoby and Gonzalez are liable under New York state law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST DEFENDANTS
JACOBY and GONZALEZ
(42 USC § 1983 Claim Arising From Fourth and Fourteenth Amendment Violations)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforementioned actions of defendants Jacoby and Gonzalez constitute

illegal seizures and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth Amendment and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

JACOBY and GONZALEZ

(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid actions by Jacoby and Gonzalez constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training and Retention)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforesaid incident and resulting damage to plaintiff was due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of the involved NYPD officers, including Jacoby and Gonzalez.

SIXTH CAUSE OF ACTION AGAINST THE CITY

(“Monell” Claim)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid incident and resulting damage to plaintiff was due a deliberate indifference by the City to a pattern of unconstitutional conduct by Jacoby and Gonzalez, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

41. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Jacoby and Gonzalez, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
February 19, 2018

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

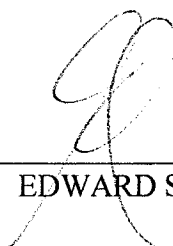
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
February 19, 2018



EDWARD SIVIN

Index No.

Year 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SURAJU YAHUZA,

Plaintiff,

-against-

THE CITY OF NEW YORK, et. al.,

Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
February 19, 2018